

1 ENGROSSED HOUSE
2 BILL NO. 4321

By: Kendrix of the House

3 and

4 Alvord of the Senate

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6 An Act relating to the Elevator Safety Act; amending
7 59 O.S. 2021, Section 3023.4, which relates to
8 enforcing the Elevator Safety Act; prohibiting
retroactive application without safety exemption; and
providing an effective date.

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. AMENDATORY 59 O.S. 2021, Section 3023.4, is
13 amended to read as follows:

14 Section 3023.4. A. It shall be the duty of the Department of
15 Labor to develop an enforcement program which will ensure compliance
16 with regulations and requirements referenced in this chapter. An
17 enforcement program may include, but is not limited to, regulations
18 for identification of property locations which are subject to the
19 regulations and requirements; issuing notifications to violating
20 property owners or operators; random on-site inspections and tests
21 on existing installations; witnessing periodic inspections and
22 testing in order to ensure satisfactory performance by licensed
23 persons, sole proprietors, firms or corporations; and assisting in
24 the development of public awareness programs. The Department shall

1 not retroactively apply new rules and standards to existing
2 structures unless the Department produces written findings,
3 supported by documented evidence, that the structure presents
4 obvious safety hazards.

5 B. Any person may request an investigation into an alleged
6 violation of this chapter by giving notice to the Department of
7 Labor of such violation or danger. The notice shall be in writing,
8 shall set forth with reasonable particularity the grounds for the
9 notice, and shall be signed by the person making the request.

10 C. Upon receipt of a notification, if the Commissioner
11 determines that there are reasonable grounds to believe that a
12 violation or danger exists, the Commissioner shall cause to be made
13 an investigation in accordance with this chapter as soon as
14 practicable to determine if such violation or danger exists. If the
15 Commissioner determines that there are no reasonable grounds to
16 believe that a violation or danger exists, the Department of Labor
17 shall notify the party in writing of such determination.

18 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 11th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate